

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS OCTOBER TERM, A. D. 2025.

BEFORE HER HONOR: YAMIE QUIQUI GBEISAY, SR CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : CEANEH D. CLINTON-JOHNSON ASSOCIATE JUSTICE
BEFORE HER HONOR: BOAKAI N. KANNEH..... ASSOCIATE JUSTICE

Cecelia Younger Kollie, by and thru her Attorney)
-in-fact, Benjamin K. Kolako of the City of)
Monrovia, Liberia Appellant)
Versus)
J.S.B. Theodore Momo, also of the City of)
Monrovia, Liberia..... Appellee)

Appeal

GROWING OUT OF THE CASE

Cecelia Younger Kollie, by and thru her Attorney)
-in-fact, Benjamin K. Kolako of the City of)
Monrovia, Liberia Plaintiff)
Versus)
J.S.B. Theodore Momo, also of the City of)
Monrovia, Liberia..... Defendant)

Ejectment

Heard: January 13, 2026 Decided: February 12, 2026

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

The appellant, Cecelia Younger Kollie, acting through her attorney-in-fact, Benjamin K. Kolako, instituted an action of ejectment against the appellee, J.S.B. Theodore Momo, her former husband, seeking his ouster from a parcel of land in Gbengbar Town, Paynesville, Montserrado County. In his answer, the appellee challenged the authenticity of the deed annexed to the complaint particularly the name appearing thereon. In response, the appellant voluntarily discontinued the action, filed a new action, and this time did not annex a title deed. The appellant alleged in her new complaint that she purchased the property, the subject of the action, in her individual capacity before the parties’ marriage and that, following the dissolution of the marital union, the appellee wrongfully refused to vacate the premises while asserting ownership. As a result of the appellee’s continued occupancy, the appellant claimed she was deprived of possession of her property. She therefore prayed that the court order the appellee to vacate

the premises and award damages of US\$50,000.00 for wrongful withholding and US\$25,000.00 for emotional distress.

Upon service of the writ of summons and complaint, the appellee filed his answer, denying the appellant's claim of exclusive ownership. He asserted that the property was jointly acquired during the marriage and that a warranty deed had been issued in both parties' names. In support of this defense, the appellee annexed a warranty deed from Catherine Targben conveying two (2) lots of land to Theodore Momo, Jr. and M. Younger Momo.

In her reply, the appellant alleged that the appellee's deed was fraudulent, having been procured through deception and misrepresentation. She further contended that the property described in her claim differed entirely from that described in the appellee's deed, emphasizing that her property consisted of only one (1) lot, whereas the appellee's deed covered two (2) lots and was probated in December 2009. She maintained that she acquired her property in 2006, prior to the marriage, and that it therefore could not be considered marital property.

Following the disposition of pretrial motions and after the case was ruled to trial by a jury, the appellant filed a motion for an investigative survey. In his response, the appellee objected to the survey, arguing that the appellant had no deed before the court that could be used if the survey were ordered. At the hearing on the motion, the appellee proposed that the survey be conducted using only the appellee's deed. The trial judge, however, overruled the objection and directed that the survey include the deeds of both parties. The appellee entered an exception and filed a petition for a writ of certiorari. The Chambers Justice held a conference, declined to issue the writ, and ordered the matter remanded to the trial court to resume jurisdiction over the case. Upon resumption, the trial judge ordered the survey to proceed. The ordered survey was conducted, and the report therefrom was filed with the trial court. This report, along with the parties' pleadings, was subjected to evidentiary trial.

At trial, the appellant presented four (4) witnesses, while the appellee presented two (2).

As her first witness, the appellant testified that she purchased the disputed property before her marriage to the appellee and held a valid deed to it. She stated that after the appellee lost an election in 2014, the parties moved onto the property. She further testified that she purchased the land in 2006 from Catherine Targben and built a residence there using proceeds from her retirement benefits.

The appellant's second witness, G. Kemah Harris, testified that she had known the appellant since 1982 and that she introduced the appellant to Catherine Targben for the purchase of land in 2006. She stated that she witnessed the execution of the deed and was acquainted with the appellee, having participated in the parties' wedding.

The appellant's third witness, John Y. Miller, testified that in 2009, the appellant engaged him to design a three-bedroom house plan and provided him with a deed for one (1) lot of land. He stated that he knew the appellee and that the appellant informed him that she had married him. He further testified that he interacted with the appellee during the construction of the house.

The appellant's fourth witness, surveyor Samuel W. Danway, Jr., testified that he conducted an investigative survey using the deeds pleaded by both parties. He stated that both parties asserted ownership of the same property and that, because both deeds allegedly originated with the same grantor, priority should be given to the earlier-dated deed.

The appellant's evidence was intended to establish that she acquired the disputed property in fee simple before the marriage, independently developed the land, and that the appellee's deed was fraudulent.

As his first witness, the appellee testified that he married the appellant in April 2007, following her divorce from her former husband in 2006, and that they cohabited prior to the marriage. He further testified that, prior to the marriage, the appellant was known as Mary Sasusa Kollie Davis and thereafter as M. Younger Momo. He further testified that during the pendency of the parties' divorce proceedings, the appellant instituted an ejectment action relying on a deed in the name of Cecelia Younger Kollie, a name she had never used. When this discrepancy was raised, the

appellant discontinued that action and later filed the present one without annexing any deed.

The appellee further testified that in 2009, he purchased two (2) lots of undeveloped swamp land from Catherine Targben, for which a warranty deed was issued in his and the appellant's names. He stated that after the institution of the ejectment action, he searched the appellant's alleged title at the National Records Center and obtained a certificate of non-discovery indicating that no such deed was recorded.

During cross-examination, the appellee testified that the disputed property was not included in the divorce proceedings because the appellant claimed exclusive ownership through the ejectment action. He further stated that the appellant never informed him before the marriage that she owned property in her individual name. He also testified that John Y. Miller had served as a contractor for him on several projects, including work related to the disputed property.

The appellee's second witness testified that he had lived in Gbengbar Town since 2007 and that in 2009 he witnessed the appellee purchase land from Catherine Targben. He further testified that he was later hired by the appellee to clear the land.

The appellee's evidence tended to establish that the property was acquired during the marriage, deeded jointly to the parties, developed by the appellee, and that the appellant's claim of exclusive ownership was unsupported.

At the close of evidence and arguments, the jury was duly charged and retired to deliberate. The jury returned a unanimous verdict of not liable in favor of the appellee, finding that the appellant failed to prove ownership of the disputed property. The appellant filed a motion for a new trial, which was denied. Final judgment was entered affirming the jury's verdict and dismissing the appellant's complaint. The appellant interposed an exception to this final ruling and, pursuant to 1.51.4, announced an appeal to this Court.

In furtherance of her appeal, the appellant filed a three-count bill of exceptions, contending that the trial judge erred by: (1) refusing to set aside the jury's verdict as contrary to the evidence; (2) failing to apply the oldest title doctrine; and (3) upholding the verdict despite the investigative survey report.

The dispositive issue before this Court is whether the appellant established, by a preponderance of the evidence, that she owns the disputed property in fee simple.

It is the law in this jurisdiction that a plaintiff in ejectment must recover upon the strength of her own title and not upon the weakness of the defendant's title. *Freeman et al. v. Webster*, 14 LLR 493 (1961); *Pratt v. Phillips & Summerville*, 9 LLR 446, 451 (1947). Ejectment is an action at law, and where it is tried by a jury, the jury is the exclusive judge of the weight of the evidence and the credibility of witnesses. *Andrews et al. v. Cornomia*, 39 LLR 761 (1999); *Constance et al. v. Ajavon et al.*, 40 LLR 295 (2000). Moreover, in this jurisdiction, it is settled law that the determination of the weight of the evidence and the credibility of witnesses in a jury trial lies exclusively within the province of the jury. In ejectment actions, the jury is the sole arbiter of the evidence, and its verdict will not be disturbed if supported by the record. Where conflicting evidence is presented, resolution of such conflicts rests with the jury, not with the appellate court. Accordingly, where the evidence is conflicting and reasonable minds may differ as to which version of the facts are more credible, an appellate court will not substitute its judgment for that of the jury. *Benson v. Sawyer*, Supreme Court Opinion, October Term, A.D. 2015; *St. Stephen v. Gbedzee*, Supreme Court Opinion, March Term, A.D. 2013.

In the case before us, the parties presented diametrically opposed claims of ownership to the disputed property, and it is the province of the jury to consider the whole volume of testimony, estimate and weigh its value, accept, reject, reconcile and adjust its conflicting parts and be controlled in the result by that part of the testimony which it finds to be of greater weigh. The appellant asserted pre-marital acquisition and independent development; the appellee asserted acquisition during the marriage, joint titling, and development under his stewardship. There were further disputes

concerning the identity of the grantor, the recording status of the appellant's alleged deed, and the congruence or lack thereof between the deed descriptions and the land on the ground.

These conflicts were not peripheral; they went to the very heart of the title and credibility. Their resolution lay squarely within the province of the jury. Having heard the witnesses, observed their demeanor, and weighed the evidence, the jury concluded that the appellant failed to establish fee simple ownership. Under settled law, such a verdict may be disturbed only where it is clearly contrary to the weight of the evidence or results in a miscarriage of justice. Civil Procedure Law, Rev. Code § 26.4. The record before us does not support such a conclusion.

With respect to the oldest title doctrine, this Court has held that where parties derive title from a common grantor, the older deed prevails provided the deeds are valid and free from fraud. However, where fraud is alleged, the holder of the older deed bears the burden of establishing that the title is genuine, valid, and beyond reproach. Questions of fraud and authenticity are factual matters properly resolved by the jury.

The appellant contends that the trial judge erred in failing to apply the "oldest title" doctrine. This Court has held that where competing deeds emanate from a common grantor and relate to the same parcel, priority generally lies with the older deed, provided that both instruments are legitimate and free from infirmity. *Lartey et al. v. Corhel et al.*, 36 LLR 255 (1989); *Kamara v. The Testate Estate of Isaac K. Essel*, Supreme Court Opinion, March Term, A.D. 2012; *Mananaai v. Momo*, Supreme Court Opinion, March Term, A.D. 2012. However, the doctrine is not absolute. Where the authenticity, recording, or validity of the purported older deed is challenged, or where fraud is alleged, the burden rests on the holder of that deed to establish its legitimacy. Such questions are factual and properly resolved by the jury.

In the present case, the appellant's alleged deed was the subject of serious dispute, including questions regarding its recording and the identity of the grantor. The record shows that the appellant's evidence failed to establish to the jury's satisfaction that she acquired the property in 2006, prior to the

marriage. The record further reveals inconsistencies regarding the identity of the grantor named in the appellant's alleged deed, as well as the absence of corroborating testimony from any member of the purported grantor family. Under these circumstances, the oldest title doctrine affords no basis for disturbing the jury's verdict, and therefore, the trial court committed no error in declining to disturb the jury's verdict on that basis.

The appellant further argues that the investigative survey report should have compelled a verdict in her favor. This argument misapprehends the law. An investigative survey report is evidentiary in nature. Its purpose is to assist the court and jury by providing technical clarification regarding boundaries, location, and the correspondence between deeds and the land in question. *Pratt v. Phillips & Summerville*, 9 LLR 446 (1947); *Freeman et al. v. Webster*, 14 LLR 493 (1961). It does not determine title, adjudicate fraud, or supplant the jury's role as factfinder. *Jarba v. Fagans-Freeman*, Supreme Court Opinion, October Term, A.D. 2012.

Here, the surveyor himself testified that his mandate was limited and did not extend to determining the authenticity of either party's deed. The jury was therefore entitled to consider the survey report alongside all other evidence and still conclude that the appellant failed to meet her burden of proof.

Consequently, the jury being in support of the appellee's assertion that the disputed property was bought in the name of both the appellee and the appellant; the estate therefore creates a joint tenancy in which both parties have vested interest; the trial judge properly affirmed the verdict.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final judgment of the trial court is affirmed. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction and give effect to the Judgment of this Opinion. Costs are ruled against the appellants. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR JIMMY SAAH BOMBO APPEARED FOR THE APPELLANT. COUNSELLOR LAWRENCE YEAKULA APPEARED FOR THE APPELLEE.